

Ram Shankar v. State of U.P. — demand relegated to Para 6.8 objection with stay

Allahabad High Court · Division Bench · 31 May 2022 · Writ-C No. 15443 of 2022 · WRIT - C No. - 15443 of 2022 · **Writ disposed without merits; liberty to file Para 6.8 objection with stay of coercive recovery.**

HEADNOTE

Allahabad High Court disposed of a writ against a demand notice for electricity dues of Rs. 1,05,417 without examining merits. The consumer was given liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Ram Shankar challenged a demand notice dated 11 October 2021 issued by the distribution licensee for electricity dues of Rs. 1,05,417, seeking certiorari to quash the demand, a restraint on recovery, and a mandamus to decide his objection dated 28 September 2021. Counsel for the Power Distribution Corporation stated that the petitioner may file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8-objection-alternate-remedy

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks; any such objection is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action is to be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed a Para 6.8 objection to be decided after hearing, and stayed coercive recovery for a limited period pending that disposal. ¶ 4-5

alternative-remedy-statutory-appeal-6.8 The writ against the demand was disposed without merits, relegating the consumer to the statutory Para 6.8 objection. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE DEMAND NOTICE DATED 11.10.2021 AND LIABILITY FOR RS. 1,05,417

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4